Federal Office
for Migration
and Refugees

Settling in Germany

Open-ended residence titles

01/03/2024 • Article • Migration and residence



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Link to the information hotline "working and living in Germany"
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If you have held a residence title in Germany **for at least five years without interruption**, you may be eligible for an open-ended residence permit, subject to certain conditions. An unlimited residence title may also be issued prior to expiry of the five-year period in certain cases.

The EU long-term residence permit

The EU long-term residence permit is an open-ended residence title enabling you to also settle in another State of the EU, assuming that you comply with the rules that apply there.

You can be issued with a German EU long-term residence permit as a matter of principle if

- you have held a residence title for at least five years (periods of residence outside Germany may be counted towards this in certain cases),
- you are able to ensure both your subsistence and that of your family members via regular income,
- you have adequate knowledge of German (corresponding to level B1 of the Common European Framework of Reference for Languages),
- you have a basic knowledge of the legal and social system and of the way of life in Germany,
- you have adequate accommodation for you and all of the family members who live with you,
- issuance is not precluded by any grounds concerned with public safety or order.

Recognition of periods of stay

Periods of residence with a residence title for specific purposes, or periods of residence abroad, may be counted towards the five-year period of prior residence required under certain circumstances.

In order to obtain EU permanent residence in Germany, people who have held an EU Blue Card for at least two years can have the following periods of stay in other member states recognised as the required periods of stay for obtaining EU permanent residence:

- Periods during which a person has held an EU Blue Card
- Periods during which a person has held a residence permit for highly qualified employment (employment for which a University degree or qualification from an equivalent tertiary education programme is required)
- Periods during which a person has held a residence permit for conducting research
- Periods during which a person has held a residence permit for the purpose of study
- Periods during which a person has held a residence permit based on the legal status of a person entitled to international protection

The settlement permit

The settlement permit also permits you to stay in Germany indefinitely, and you can stay in other Schengen states for up to 90 days in a 180-day period. You can be issued with a settlement permit as a matter of principle if

- you have held a residence permit for at least five years,
- you have paid contributions to a pension insurance scheme for at least 60 months (this condition may also be met by a spouse),
- you are able to support yourself,
- you have adequate knowledge of German (corresponding to level B1 of the Common European Framework of Reference for Languages),
- you have a basic knowledge of the legal and social system and of the way of life in Germany,
- you have adequate accommodation for you and all of the family members who live with you,
- you have all the permits required to enable you to practice your occupation in the long term (this condition may also be met by a spouse),
- issuance is not precluded by any grounds concerned with public safety or order.

Recognition of periods of stay

Periods of residence with a residence title for specific purposes, or periods of residence abroad, can be counted towards the required prior residence period under certain circumstances.

further information

Make it in Germany: Settlement permit

The settlement permit for persons entitled to asylum, persons entitled to international protection and (resettled) refugees

Persons entitled to asylum, persons to whom refugee protection has been granted, and (resettled) refugees, can receive a settlement permit as a matter of principle if

- you have held your **residence permit for five years** (incl. the period covered by the preceding asylum process),
- the BAMF has not given notice that the conditions apply which might warrant revocation or withdrawal (in the case of an asylum decision from 2015, 2016 or 2017, the BAMF must have explicitly stated that the conditions for revocation or withdrawal are not satisfied),
- your livelihood is largely ensured,
- you are **sufficiently proficient in German** (corresponding to level A 2 of the Common European Framework of Reference for Languages),
- you have a basic knowledge of the legal and social system and the way of life in Germany,
- you have adequate accommodation for you and all of the family members who live with you,
- you have all the permits required to enable you to practice your occupation in the long term (this requirement may also be met by your spouse),
- issuance is not precluded by any grounds concerned with public safety or order.

You will receive your settlement permit **after only three years** if you also have a command of **German** (corresponding to level C 1 of the Common European Framework of Reference for Languages) and are very largely able to earn your own **livelihood**.

The general prerequisites for granting residence apply to issuing a settlement permit to persons with subsidiary protection status (see "Settlement permit" above).

Reduced waiting times and more favourable pre-conditions

Tenured civil servants

If you are a foreigner working as a civil servant with life-long tenure for a German public-service employer, you will be issued with a settlement permit **after only three years**. The requirement for 60 months' statutory pension insurance contributions is also waived in this case.

Skilled workers

You receive a settlement permit if you have held a residence title for three years for employment as a skilled worker (with vocational training or an academic education) or as a researcher, hold a job, have paid compulsory pension insurance contributions for 36 months and have sufficient knowledge of the German language.

Persons who have completed a degree or vocational training in Germany

You receive a settlement permit if you have successfully completed vocational training or a degree in Germany, have held a residence permit for two years for employment as a skilled worker (with vocational training or an academic education) or as a researcher, hold a job, have paid compulsory pension insurance contributions for 24 months and have sufficient knowledge of the German language.

Skilled workers with an EU Blue Card

If you hold an EU Blue Card and have a basic knowledge of German, you will receive a settlement permit after only 27 months, provided you have been in appropriate employment during this time and paid statutory pension insurance contributions.

If you have a **sufficient understanding** of German, you will be issued with a settlement permit after only **21 months**.

Self-employed persons

You may be issued with a settlement permit **after only three years** if you are successful and able to earn your livelihood and support your dependants with sufficient income.

Family members of a German national

You will receive your settlement permit if you have held a residence permit for three years, the family unit continues to exist in Germany and you have sufficient knowledge of German.

Family members of foreign nationals

In the case of **spouses** living in a marital partnership, it is sufficient if one spouse fulfils the requirements with regard to a professional licence and pension insurance contributions.

If you are **a child** of a foreign national, you will receive a settlement permit if you have held **a residence permit for at least five years when you turn 16**.

If you are **of age and have held a residence permit for five years**, you will receive a settlement permit provided that you have sufficient knowledge of German and a secure livelihood, or if you are undergoing training which will lead to a recognised qualification.

Family members of foreign nationals with open-ended residence titles

If you are living in or have lived in marital cohabitation with a person who holds a settlement permit, you can obtain a settlement permit even if you separate and marital cohabitation comes to an end. The only requirement is that your livelihood be ensured. Both your own income and the maintenance paid by your partner will be taken into consideration when carrying out the calculation.

You can be issued with a settlement permit **after just three years** if your spouse has **a settlement permit for skilled workers** and you are in gainful employment for at least 20 hours per week.

Former German nationals

You will receive a settlement permit if your habitual place of residence had been in Germany for at least five years when you lost your German nationality.

The legal basis

- Sections 9-9c of the Residence Act
- Section 18c of the Residence Act
- Section 19c subsection (4) of the Residence Act
- Section 21 subsection (4) of the Residence Act
- Section 26 subsections (3) and (4) of the Residence Act
- Section 28 subsection (2) of the Residence Act
- Section 31 subsection (3) of the Residence Act
- Section 35 of the Residence Act
- Section 38 of the Residence Act

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